



Tammy Buchanan <tammy.buchanan@dataprotection.education>

Re: The Primary First Trust - GDPR

1 message

Clark Taylor <ctaylor@theprimaryfirsttrust.co.uk>
To: Tammy Buchanan <tammy.buchanan@dataprotection.education>

22 June 2023 at 15:46

Thanks Tammy for your guidance here. Tricky one!

I will put something together for the CEO to make the final decision on.

We are using a HR@ shared mailbox for majority of our communication with staff, but sometimes specifically sensitive subjects end up being direct between Headteacher and HR manager in this example.

Kind regards

Clark

Sent from [Outlook for Android](#)

From: Tammy Buchanan <tammy.buchanan@dataprotection.education>
Sent: Thursday, June 22, 2023 9:19:59 am
To: Clark Taylor <ctaylor@theprimaryfirsttrust.co.uk>
Subject: Re: The Primary First Trust - GDPR

Hi Clark,

The legal team says that as it is a business address that you do legally need to give access to the acting HR manager. They shouldn't reply from that email address but forward it onto their own and reply from there. Perhaps then put on an auto forward from that point once they have obtained all the info. I would recommend changing the password for the email account given the HR Manager is going through a disciplinary and off and give that new password to the acting hr manager.

You could consider an hr@ email address as a shared mailbox, and this point in time might be a good opportunity to introduce that. It could be used for most of the general hr type queries that the hr department could access and advertised to all employees in the trust.

I hope that helps,

Many thanks,
Tammy

On Wed, 21 Jun 2023 at 10:58, Clark Taylor <ctaylor@theprimaryfirsttrust.co.uk> wrote:

Hi Tammy,

Thank you! My mobile number is probably easiest 07841679063.

Just a general overview, a senior member of staff is currently suspended, and we have an interim. The interim has requested access to the emails from the suspended user as he is trying to fill in lots of blanks and it isn't ideal only having half the picture per se.

I don't feel this is right. I thought we would be able to facilitate access to retrieve a specific file or conversation and this would need to be documented, along with the business justification for retrieving the email for example. What are your thoughts on this from a GDPR perspective?

Kind regards

Clark Taylor



Clark Taylor

IT Lead

The Primary First Trust

The White House

Clifton Marine Parade

Gravesend DA11 0DY

Tel: 01322 640941

www.theprimaryfirsttrust.co.uk

 @Primary1stTrust #First4

First for Primary Education

From: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Sent: Wednesday, June 21, 2023 10:48 AM

To: Clark Taylor <ctaylor@theprimaryfirsttrust.co.uk>

Subject: Re: The Primary First Trust - GDPR

Hi Clark,

Yes of course - I am out of the office for a couple of days on training. I can try and call you when I get a break - do you have a direct dial phone number I could call you on?

Also - do you want to send an outline of what the issue is, who the people are and what the mailbox is and I can have a think? There is a definite requirement for rules/procedures/authority around this.

Many thanks,

Tammy

On Wed, 21 Jun 2023 at 09:58, Clark Taylor <ctaylor@theprimaryfirsttrust.co.uk> wrote:

Hi Tammy,

Can I please ask your advice regarding a member of staff within our Trust.

I have GDPR concerns related to IT and when to delegate access to a mailbox and rules around this kind of activity.

Is it possible we can have a quick chat at all today?

Kind regards

Clark Taylor



Clark Taylor

IT Lead

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